

## 24PR00353 Conservatorship of Julie Westerfield

County: santa-barbara

Division: Probate

Department: 3 SB-Anacapa

Hearing date: 2026-09-02

Motion: Petition for Substituted Judgment and Instructing Conservator to Take Proposed Action

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Tentative Ruling: Conservatorship of Julie Westerfield

Case Number

24PR00353

Case Type

Probate

Hearing Date / Time

Wed, 09/02/2026 - 09:30

Nature of Proceedings

Petition for Substituted Judgment and Instructing Conservator to Take Proposed Action

Tentative Ruling

For Petitioner Gerry and Chris Westerfield: Andrew Haskett, Steven Haskett

For Conservatee Julie Westerfield: Dana Long

For Mark Watson, Conservator: Marilyn D. Anticouni

For Jordana Snider: in pro per [Substitution filed 8/28/26; David Shaneyfelt and Justin M. Alvarez are substituted in and Jordana Snider is self-represented]

For Brian Chossek: in pro per

## RULING

The Petition Authorizing Substituted Judgment and Instructing the Conservator to Take Proposed Action is GRANTED, instructing Conservator, Mark Watson, to execute the Restatement of the Westerfield 2016 Revocable Trust Dated January 1, 2026.

To be explicit: Pursuant to the terms of Probate Code section 2580, the terms of the Westerfield Trust, and the terms of the Settlement Agreement, Petitioners request is GRANTED that the Court instruct the Conservator, Mark Watson, to execute the Restatement of the Westerfield 2016 Revocable Trust Dated January 1, 2026 (hereinafter the "Proposed Restatement"). The pertinent terms of the Proposed Restatement reflect the terms of the Settlement Agreement and may be summarized as follows:

- i. Snider is explicitly disinherited and is considered to have predeceased the Trustors.
  - ii. During an incapacitated Trustor's lifetime, the Trustee shall regularly and conscientiously make distributions of income and principal for the benefit of the incapacitated Trustor. Distribution shall be made directly to the incapacitated Trustor to the extent the incapacitated Trustor is able to manage the distribution. Otherwise, distribution shall be made to other persons and entities for the incapacitated Trustor's use and benefit, including the incapacitated Trustor's agent under a Durable Power of Attorney or Conservator.
  - iii. Upon the death of either Trustor, the trust estate shall be divided into a Survivor's Trust and Deceased Trustor's Trust. The Trustee shall have the discretion to make a QTIP election of the deceased trustor's separate property and one-half share of the community property. The Surviving Trustor shall have a limited testamentary power of appointment over the assets held in a QTIP Trust. The Surviving Trustor shall have a general power of appointment over the assets held in the Survivor's Trust.
  - iv. Within nine (9) months of the death of the Conservatee, the Trustee is instructed to make the following specific distributions:
    - a. \$175,000.00 to Briana Snider;
    - b. \$175,000.00 to Madison Snider;
    - c. \$175,000.00 to Hudson Chossek;
  - v. Upon the death of both Trustors, the trust estate shall be distributed in its entirety to Trustors' son, Christopher Westerfield.
3. The proposed action benefits the Conservatee by ending all litigation between the parties.
4. Further, the proposed action will reduce current expenses to the estate by ending all litigation and reduce prospective expenses in the administration of the estate upon the death of Conservatee.

## Analysis

This is a Motion that the Attorneys for Petitioners Gerry and Christopher Westerfield filed on 6/11/26 that is opposed by Jordana Snider. 210 pages; summarized: On January 3, 2024, Julie Westerfield ("Conservatee"), Gerry Westerfield (Conservatee's husband "Gerry") and Christopher Westerfield (Conservatee's and Gerry's son ["Christopher"]) filed a motion for Financial Abuse of an Elder Restraining Order against Jordana Snider (Conservatee's adopted daughter, ("Snider"). On January 3, 2024, Conservatee, Gerry, and Christopher filed a motion for Financial Abuse of Elder Restraining Order against Brian Chossekk (Snider's husband ("Chossekk"). (Superior Court of California, County of Santa Barbara,

Julia Westfield vs Brian Chossekk, Case No. 24CV00031). The two restraining order cases will hereinafter be jointly referred to as the "Restraining Order Cases."

On January 26, 2024, Conservatee filed a civil Complaint against Snider and asserted the following causes of action: (1) Undue Influence, (2) Financial Abuse of an Elder, (3) Violation of California Welfare and Institutions Code section 15657.6, (4) Breach of Fiduciary Duty, (5) Constructive Fraud, (6) Mistake, (7) Unjust Enrichment,

and (8) Cancellation of an Instrument. (Superior Court of California, County of Santa Barbara, Julie Westerfield et. al. v. Jordana Snider et, al., Case No. 24CV000431.)

In response, Snider filed a Cross-Complaint against Christopher and asserted the following causes of action: (1) Undue Influence, (2) Tortious Interference with Contractual Relations, (3) Tortious Interference with Expected Inheritance (Real Property), and Tortious Interference with Expected Inheritance (Estate Plan). (Superior Court of California, County of Santa Barbara, Julie Westerfield et. al. v. Jordana Snider et, al., Case No. 24CV000431.)

The facts and circumstances underlying the Complaint and Cross-Complaint

involved the execution and delivery of a Gift Deed from Conservatee to Snider for real property located in Ventura County. The entirety of the case will hereinafter be referred to as the "Undue Influence Case."

On April 18, 2014, Gerry filed a motion to be appointed as the Guardian Ad Litem for Conservatee. The facts and evidence supporting the motion included (1) Conservatee's Alzheimer's diagnosis, and (2) Conservatee's Durable Power of Appointment and Advanced Health Care Directive nominating Gerry to act as her agent.

On April 22, 2024, Snider objected to Gerry's motion to be appointed as Guardian Ad Litem.

On April 22, 2024, the Judge granted Gerry's motion to be appointed as Guardian

Ad Litem.

On April 23, 2024, Snider filed a motion for reconsideration of the appointment

of Gerry as Guardian Ad Litem.

Prior to the court hearing Snider's Motion for Reconsideration, the relevant parties

agreed to file a Petition for Conservatorship of the Estate of Conservatee seeking to appoint a neutral third party as Conservator. (Superior Court of California, County of Santa Barbara, In re: The Conservatorship of the Estate of Julie Westerfield, Conservatee, Case No. 24PR00353.) The Court determined that Conservatee lacked the requisite capacity to

manage her own financial affairs and thus necessitated the appoint of a Conservator of Conservatee's Estate. Currently, Mark Watson is the court appointed Conservator, Dana Longo is the court appointed Counsel to the Conservatee, and Marilyn Anticouni serves as attorney for the Conservator.

On June 27, 2026, the Undue Influence Court ordered the Restraining Order Cases,

the Undue Influence Case, and the Conservatorship Case as related.

The Undue Influence Case was tried to its conclusion and resulted in a Judgment based on the jury verdict entered on May 5, 2025, and a Final Statement of Decision filed May 15, 2025, as to the adoption ruling by the Hon. Thomas P. Anderle, upon which Judgment was issued July 2, 2025. In addition, there were post-trial motions brought by Snider and a post-judgment request for an award of attorney's fees brought by Conservatee. The case is currently on appeal filed by Snider.

In its Judgment After Trial, the Court also granted both of the requested Financial Elder Abuse Restraining Orders against Snider and Chossek. Following the entry of Judgment, the parties elected to enter into a settlement agreement to resolve all pending matters, including claims that are existing or non-existing pursuant to the terms and conditions of the Settlement and Mutual Release of Existing and Non-Existing Claims Between Julie and Christopher Westerfield; and Jordana Brie Snider ("Settlement Agreement"). The Settlement Agreement was entered into and agreed to by Conservatee, by her Conservator Mark Watson; Gerry, individually, as Guardian Ad Litem of Conservatee, and as Trustee of the Westerfield Family 2016 Revocable Trust dated March 9, 2016; Christopher; Snider; Chossek; Dana Longo, as court appointed attorney for Conservatee; Brant Berglund, as attorney to Gerry as Guardian Ad Litem of Conservatee and as Trustee of the Westerfield Family 2016 Revocable Trust dated March 9, 2016; John Thyne III, as attorney to Christopher; Marilyn Anticouni, as attorney to Conservator Mark Watson; and David Shaneyfelt, as attorney for Snider.

The terms of the Settlement Agreement may be summarized as follows:

- i. Snider shall dismiss her pending appeal in the Undue Influence Case.
- ii. Snider shall pay to Conservatee the sum of \$375,000.00.
- iii. Snider shall waive any rights or claims to inherit by and through Conservatee's estate, Conservatee's mother's estate, or from the Westerfield Family 2016 Revocable Trust dated March 9, 2016.
- iv. Within nine (9) months of her death, Conservatee shall pay to Snider's children, namely Brianna Snider, Madison Snider, and Hudson Chossek, the sum of \$175,000.00.
- v. Conservatee shall make any requisite changes in her testamentary estate plan to ensure that Brianna Snider, Madison Snider, and Hudson Chossek shall receive the aforementioned distribution within nine (9) months of Conservatee's death.
- vi. Snider shall waive any right or claim to contest the validity of any testamentary document executed by or on behalf of Conservatee so long as the terms of said testamentary document reflect the terms and conditions of the Settlement Agreement.
- vii. Conservatee, Christopher and Gerry shall set-aside the Financial Elder Abuse Restraining Orders issued by the Court against Snider and Chossek.

viii. A general release of all claims against all other parties and waiver of rights

under Cal. Code of Civil Procedure section 15627.

The Westerfield Family 2016 Revocable Trust Dated March 9, 2016

Gerry and Conservatee, Husband and Wife (the "Trustors"), established The Westerfield

Family 2016 Revocable Trust Under Declaration of Trust Dated March 6, 2016 ("Westerfield Trust"). After the formal adoption of Snider by Conservatee in 2022, the Trustors executed the First Amendment to and Restatement of the Westerfield Family 2016 Revocable Trust dated February 10, 2023. The purpose of the First Restatement was to include Snider as a beneficiary. After litigation between the parties commenced, Trustors executed the Rescission and Cancellation of Amendment to First Restatement of the Westerfield dated April 16, 2024 ("Rescission and Cancellation"). The purpose of the Rescission and Cancellation was to revive the original Westerfield Trust that did not include Snider as a beneficiary. On that same day, Trustors executed the First Amendment to the recently revived Westerfield Trust. The purpose of the First Amendment was to expressly disinherit Snider. For the purposes of this instant Petition, the pertinent terms of the Westerfield Trust relate to the power of revocation and amendment. The Westerfield Trust states, in pertinent part as follows:

"4.3 Revocation and Amendment Powers Personal. Settlor's powers to revoke and amend are personal to them and, in the event of incapacity, may not be exercised by a conservator (except pursuant to a court order) or by another fiduciary or person."

Request For Order Authorizing Substituted Judgment and Instructing the

Conservator to Amend the Westerfield Trust to Reflect the Terms and Conditions of the

Settlement Agreement

Under Probate Code section 2580, any interested person may file a petition for an order

authorizing or requiring the conservator to take a proposed action for the purpose of (1) benefitting the conservatee or the estate or (2) minimizing current or prospective expenses of administration of the conservatorship or the estate upon the death of the conservatee. (Prob. C. Section 2580(a)(1)). The proposed action may include the Conservator exercising the right of the Conservatee to (A) revoke or modify a revocable trust, so long as the Declaration of Trust does not expressly prohibit such exercise by the Conservator.

In this case, the Westerfield Trust explicitly permits the exercise of the Conservator to amend the terms of the Westerfield Trust "pursuant to a court order." Therefore, pursuant to the terms of Probate Code section 2580, the terms of the Westerfield

Trust, and the terms of the Settlement Agreement, Petitioners request that the Court instruct the Conservator, Mark Watson, to execute the Restatement of the Westerfield 2016 Revocable Trust Dated January 1, 2026 (hereinafter the "Proposed Restatement"). The pertinent terms of the Proposed Restatement reflect the terms of the Settlement Agreement and may be summarized as follows:

i. Snider is explicitly disinherited and is considered to have predeceased the Trustors.

ii. During an incapacitated Trustor's lifetime, the Trustee shall regularly and

conscientiously make distributions of income and principal for the benefit of the incapacitated Trustor. Distribution shall be made directly to the incapacitated Trustor to the extent the incapacitated Trustor is able to manage the distribution. Otherwise, distribution shall be made to other persons and entities for the incapacitated Trustor's use and benefit, including the incapacitated Trustor's agent under a Durable Power of Attorney or Conservator.

iii. Upon the death of either Trustor, the trust estate shall be divided into a

Survivor's Trust and Deceased Trustor's Trust. The Trustee shall have the discretion to make a QTIP election of the deceased trustor's separate property and one-half share of the community property. The Surviving Trustor shall have a limited testamentary power of appointment over the assets held in a QTIP Trust. The Surviving Trustor shall have a general power of appointment over the assets held in the Survivor's Trust.

iv. Within nine (9) months of the death of the Conservatee, the Trustee is

instructed to make the following specific distributions:

a. \$175,000.00 to Briana Snider;

b. \$175,000.00 to Madison Snider;

c. \$175,000.00 to Hudson Chossek;

v. Upon the death of both Trustors, the trust estate shall be distributed in its entirety to Trustors' son, Christopher Westerfield.

The proposed action benefits the Conservatee by ending all litigation between the parties.

Further, the proposed action will reduce current expenses to the estate by ending all litigation and reduce prospective expenses in the administration of the estate upon the death of Conservatee.

The Conservatee is Not Opposed to the Proposed Action and The Proposed

Action Will Have No Adverse Effect on the Estate During Conservatee's Lifetime

Under Probate Code section 2582, a court is authorized to require the proposed action if the Conservatee is not opposed to the proposed action and the proposed action will have no adverse effect on the estate's ability to provide for the Conservatee during the remainder of her lifetime. In this case, the proposed action does not effect the trust estate during Conservatee's lifetime whatsoever. The entirety of the trust estate will remain in trust for the benefit of Conservatee for the remainder of her life. The proposed action simply alters the distributive scheme of the trust estate upon the death of Conservatee. Therefore, the requested proposed action complies with Probate Code section 2582.

Jordana Snider's Objection to the Petition

Emailed to the Court on 8/27/26; "On behalf of Jordana Snider, please find attached an electronic courtesy copy of the Supplemental Information of Interested Party Jordana Snider Regarding Petition for Order Authorizing Substituted Judgment and Instructing Conservator to Take Proposed Action, along with Appendix A. Please note, Jordana wishes no acrimony. She simply wants to ensure the court record is accurate. This document is being formally e-filed with the Court, along with a signed Proof of Electronic Service (POS-050, POS-050(P), and POS-050(D)). Counsel for all essential parties has already been served with this document today, August 29, 2026, via email, pursuant to California Code of Civil Procedure Section 1010.6 and California Rules of Court, Rule 2.251.

Case Information: Respectfully submitted, Brian Chossek. The document was read and considered.

The Court's Conclusions

The Court has read all the documents submitted. Thank you. The Court will rule based upon everything said.

Judges

Judge Thomas Anderle

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